

A prevailing party in a contract action may recover reasonable attorney's fees incurred only in that party's defense of the covered contract claims. (*Hill v Affirmed Hous. Group* (2014) 226 Cal.App.4th 1192, 1197.) To the extent that shared counsel engaged in litigation activity on behalf of another defendant for which fees are not recoverable, the judge has broad discretion to apportion fees, even if the issues are connected, related, or intertwined. (*Zintel Holdings, LLC v McLean* (2012) 209 Cal.App.4th 431, 443.) Although timekeeping and billing procedures may make a requested segregation difficult, they do not make allocation impossible. (*Hill v Affirmed Hous. Group, supra*, 226 Cal.App.4th at p. 1197.) Nevertheless, allocation of fees incurred is not required when the claims at issue are inextricably intertwined, such that it is impossible to differentiate between time that is compensable and time that is not compensable. (*Ibid.*) For example, a court may exercise its discretion not to apportion fees between an LLC and its managing member where the defenses asserted by the LLC manager and the LLC were so interrelated that it would have been impossible to separate them into time units billed on behalf each represented party. (*See id.* at pp. 1197–1198.)

Here, the 2022 Lease provides for the recovery of fees by only parties or brokers to the 2022 Lease. Specifically, paragraph 31 of the 2022 Lease provides:

If any Party or Broker brings an action or proceeding involving the Premises whether founded in tort, contract or equity, or to declare rights hereunder, the Prevailing Party (as hereafter defined) in any such proceeding, action, or appeal thereon, shall be entitled to reasonable attorneys' fees. . . . The term, "Prevailing Party" shall include, without limitation, a Party or Broker who substantially obtains or defeats the relief sought, as the case may be, whether by compromise, settlement, judgment, or the abandonment by the other Party or Broker of its claim or defense. The attorneys' fees award shall not be computed in accordance with any court fee schedule, but shall be such as to fully reimburse all attorneys' fees reasonably incurred. In addition, Lessor shall be entitled to attorneys' fees, costs and expenses incurred in the preparation and service of notices of Default and consultations in connection therewith

(Larson Decl., Ex. A at ¶ 31 [emphases added].) The Lease defines "Parties" to include Lessor 9 Whatney, LLC and Lessee Mayrock Automotive, Inc. (Larson Decl., Ex. A at ¶ 1.1.) The Lease defines "Brokers" to include CBRE, Inc., Gregg Haly/Chip Write/Kelly Kayl, Pacific ProPartners, and Eric Yao. (Larson Decl., Ex. A at ¶ 1.9.)

Defendant Mayrock Inc., Defendant Plainview Management Corp., and Cross-Defendant Shaked are not parties to the 2022 Lease.

No later than nine (9) court days before the continued hearing, Moving Parties shall file and serve a supplemental brief that addresses: (1) Moving Parties' right to recover fees incurred to pursue claims against the nonsignatory defendants Mayrock Plainview Management Corp.; and/or (2) Cross-Defendant's right to recover reasonable attorney's fees. The supplemental brief be no more than five (5) pages in length.

		No later than five (5) court days before the continued hearing, Defendants may file and serve a responsive brief that addresses any new arguments or evidence submitted in Moving Parties' supplemental filing(s). Moving Parties to give notice.
5	Betancourt v. Airstream, Inc.	Defendant Airstream, Inc. moves to compel Plaintiffs Mark A. Betancourt and Gail Ann Ortiz to provide further responses to Defendant's first set of form interrogatories, special interrogatories, and requests for production of documents. For the following reasons, the motion is DENIED. Both Defendant and Plaintiffs' request for monetary sanctions are DENIED. "[A]ny party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action." (Code Civ. Proc. § 2024.020(a).) The date this matter was initially set for trial was February 9, 2026. (ROA 43.) Thus, the last day for discovery motions to be heard was January 26, 2026. On January 14, 2026, Defendant moved ex parte for an order continuing trial. The Court's Minute Order on that ex parte application states in part: The Trial is continued to 08/17/2026 at 09:00 AM in Compliance with Local Rule 317 is required. There is no order to continue the deadlines. In other words, the court's order continuing the trial to August 17, 2026 did <i>not</i> extend the discovery cutoff. "Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings." Code Civ. Proc. § 2024.020(b). "Parties to an action may with the consent of any party affected by it, enter into an agreement to extend the time for the completion of discovery proceedings or for the hearing of motions concerning discovery, or to reopen discovery after a new date for trial of the action has been set. This agreement may be informal, but it shall be confirmed in a writing that specifies the extended date...." (Code Civ. Proc. §2024.060.) Defendant has presented no evidence of any agreement to extend the discovery motion cutoff date. In short, Defendant's motions are untimely. In the absence of a motion to reopen discovery – which Defendant has not filed – the court cannot grant the motion. One such court granted a motion to compel after the discovery cutoff had expired. "By simply hearing the motion to compel without first deciding whether discovery should be reopened for that purpose under